
Appeal Decision

Site visit made on 5 August 2026

by Jane Smith MA MA MRTPI

an Inspector appointed by the Secretary of State

Decision date: 21 September 2026

Appeal Ref: 6006761

Land at Blunts Farm, Coopersale Lane, Theydon Bois, Epping, Essex CM16 7NT

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Theydon Farm Units Ltd against the decision of Epping Forest District Council.
 - The application Ref is EPF/1406/22.
 - The development proposed is change of use from agricultural to B8 storage and associated development.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. A revised National Planning Policy Framework (the Framework) was issued on 17 August 2026 and is a material consideration in this appeal. Both main parties have had the opportunity to comment on its implications for their cases, and I have taken comments received into account.
3. The Procedural Guide¹ explains that video evidence cannot be accepted in the appeal process, as it is not possible to be sure that everyone involved is able to view the same evidence. I have accordingly not had access to, or taken into account, any evidence in the representations from interested parties which was submitted in that format. However, I have had regard to the still image files which were provided to convey the same evidence in an alternative form.
4. It became apparent while the appeal was in progress that one of the letters of representation received by the Council had not initially been forwarded with the appeal questionnaire. However, a copy has been provided, and the appellant has had the opportunity to comment on it.
5. The appellant's final comments included some points which had not previously been made. The Council was given an opportunity to respond to that additional evidence but chose not to do so. I have taken the evidence in final comments into account and am satisfied that no procedural unfairness arises as a result.
6. I have noted evidence provided by all parties about the planning history of the site, including the enforcement notice (EN) served in 2022, shortly after which this planning application was made. I have also noted that the 2024 appeal decision which quashed the EN referred to an existing storage and distribution use of the site at that time, alongside other uses, and that interested parties allege that non-

¹ Procedural Guide: Planning Appeals - England

agricultural uses persist. For the avoidance of doubt, while I have had regard to the planning history to the extent that it is relevant to the issues before me, it is not the function of this appeal to determine what use, if any, is currently being made of the site. I have considered the appeal on the basis of the proposal as detailed in the planning application, which was for change of use of agricultural buildings to a B8 use, defined in the Town and Country Planning (Use Classes) Order 1987 (as amended) as ‘use for storage or as a distribution centre’.

Main Issues

7. The Council concluded that the proposal would not be inappropriate development in the Green Belt, since it would involve the re-use of existing buildings in accordance with paragraph 154(h)(iv) of the 2024 Framework. In the revised Framework, the wording of the equivalent policy GB7 differs, but it continues to allow in principle for re-use of existing buildings in the Green Belt, provided they are of permanent and substantial construction.
8. The buildings were apparently described as dilapidated in an earlier appeal decision, but that decision was made some considerable time ago. The buildings have apparently been renovated since then. There is no substantive evidence before me to suggest that those renovations were unlawful, and it does not appear that any such allegation was made in the enforcement notice, which dates from around the same time. When I visited the site, the buildings appeared to be of permanent and substantial construction. As such, based on the evidence before me, I have no reason to disagree with the Council’s conclusion that their reuse is not inappropriate development in the Green Belt. That being the case, it is not necessary to consider whether the proposed use would have any adverse impact on the openness of the Green Belt.
9. Against that background, based on the reasons for refusal, the main issues are:
 - the effect of the development on highway safety, and
 - whether the proposed development would be acceptably located having regard to its accessibility by means of sustainable transport modes.

Reasons

Highway safety

10. The appeal site contains a range of former agricultural buildings of various size, with areas of hardstanding, in a typical farmyard layout. It is set back from Coopersale Lane, behind neighbouring dwellings. Access is by means of a private track, which also serves other commercial premises outside the appeal site.
11. At the junction with Coopersale Lane, the access provides for two-way vehicle movement, and there are turning radii at the corners. On the west side, there is a post and rail fence around the corner. A soft verge continues along the edge of Coopersale Lane, in front of the fence. The verge includes a drainage ditch and there is a hedgerow behind that. At the time of my site visit, the hedgerow was largely set back behind more open sections of verge, but there was some vegetation further forward, and stumps indicating where growth had been cut back.
12. The Glossary in Annex B of the Framework includes B8 storage and distribution uses within a wider category of ‘freight and logistics’ uses. In comparison with

some such uses, the site would be of a modest scale. Nevertheless, the premises would not be insignificant in extent, amounting to just under 2000sqm of floorspace across five buildings, divided into 30 units. The May 2022 Ardent Transport Statement predicts around 170 daily trips and that is not disputed in the Highways Authority's evidence for this appeal.

13. Although the access is already in use, and carries some commercial traffic associated with the adjacent site, the existing use of the appeal site in planning terms is for agricultural purposes. Therefore, for purposes of this appeal, that is the baseline for considering whether vehicular use of the access would increase. Agriculture encompasses a wide range of activities, with different servicing requirements, so the associated traffic movements can vary. Indeed, the comparability of the single agricultural site referenced in the Ardent EFSAC Technical Note has been questioned in representations. Nevertheless, even if those figures are taken at face value, there would be a significant increase in use of the existing access, amounting to more than the modest level of intensification acknowledged by the appellant.
14. The access is on the inside of a gentle bend, where the encroachment of vegetation could impair visibility. That introduces a risk of conflict between vehicles making turning movements at the access and those proceeding along the lane. As such, unless suitable visibility can be secured, more intensive use of the access would be prejudicial to highway safety. While the accident records presented do not point to an existing safety concern along the lane, that does not mean that its safety is secured for future, more intensive use.
15. There is no dispute that visibility splays of 2.4m by 78m are required to the west or that the appellant does not directly control the land required to provide that standard of visibility. The disagreement hinges on whether the visibility splays could be secured within land controlled by the Highways Authority. It is evident from their first consultation response that the Highways Authority initially accepted the appellant's evidence that the visibility splays could be secured on highway land. Against that background, it appears that a recommendation was initially drafted to grant planning permission. However, that recommendation was withdrawn following a site visit and receipt of further Highways evidence. Based on that most recent evidence, the extent of the highway land is disputed.
16. The Council's position is supported by an email dated 31 October 2025 from the Essex Highways Records Team, which states that the highway extends only to the roadside brow of the ditch. The only mapped evidence provided in support is acknowledged by the author to be in crude form, amounting to hand annotation of an extract from the appellant's survey drawing. However, the explanatory email clearly states that the ditch is part of the adjacent private property, irrespective of the red line boundary shown on Land Registry title plans or Ordnance Survey base maps. It also indicates that the exclusion of ditches from the highway would have been given as a proviso when the highway plan was originally provided, although no documentary evidence has been provided to that effect.
17. There is no clear evidence that similar advice on the extent of the highway was available when previous applications or appeals were considered. As such, even if similar highways issues were not raised then, that is of limited relevance in light of the current highways evidence.

18. The appellant does not accept the Highways Authority's evidence on the exclusion of the ditch from the highway and that is the crux of the issue before me. It is also, however, evident from the drawings that the 2.4 x 78m visibility splay would rely on land which includes the ditch and the section of verge immediately behind it. Although that land is outside what appears to be a boundary fence and hedge defining the extent of the adjacent private property, there is no guarantee that those features are in fact on the edge of the highway. The amount of land alleged to be outside the highway is not insignificant and if it is in private hands, that would be prejudicial to providing and maintaining the visibility splay.
19. While I acknowledge that the evidence from both parties is contradictory, it is clear that the visibility splay could only be adequately secured, and maintained for the duration of the proposed use, through co-operation with the Highways Authority. Based on the evidence before me at this point, they do not accept ownership of all the required land and therefore that co-operation cannot be relied upon. That being the case, a condition to secure the visibility splay would not be enforceable by the local planning authority, which would be contrary to one of the tests for planning conditions in Planning Practice Guidance (PPG), as incorporated into Policy DM6 of the Framework.
20. The condition would also fall outside the powers granted by s72(1) of the Town and Country Planning Act 1990, which allows for conditions to regulate development or require the carrying out of works only on land under the control of the applicant. It would not accord with guidance in the PPG for use of Grampian conditions since, based on the evidence before me, there is no prospect of the vegetation within the disputed section of the visibility splay being kept cut back, if it belongs to an adjoining private landowner.
21. For the above reasons, based on the evidence before me, I conclude that the development would have an unacceptably harmful effect on highway safety, which cannot be addressed by planning conditions. That would be contrary to Policy T1 of the Epping Forest District Local Plan 2023 (the Local Plan) which articulates the Council's policy to promote a safe transport system and requires in part E that it is demonstrated that development proposals would not compromise highway safety. The proposal would also conflict with Policy TR6 of the Framework which states amongst other things that development proposals should be refused if they would have an unacceptable impact on highway safety.
22. Policy DM9 of the Local Plan is also referred to in the reason for refusal but is less clearly relevant. While the design requirements in that policy include maximising connectivity and safe pedestrian and cycling routes, they do not explicitly reference vehicular highway safety. Nevertheless, the conflict with Policy T1 is sufficient to bring the proposal into conflict with the development plan as a whole.

Suitability of location

23. The appeal site is located in countryside approximately 1km outside the nearest settlement of Theydon Bois, in an area shown as having poor connectivity on the Essex Parking Connectivity Map. There is an underground station on the near edge of Theydon Bois and there is also a bus route along Abridge Road. But although neither is a great distance away, they could only be reached via Coopersale Lane, which is enclosed by hedgerows and lacks dedicated footpaths or street lighting. It is therefore highly unlikely that the site would routinely be

accessed on foot, and that in turn greatly reduces any prospects of the public transport options being used.

24. The public rights of way to the north are on the other side of a tract of open land, where they also appear highly unlikely to be used as a walking route by employees or others needing to access the site for reasons related to its B8 use. Cycling from Theydon Bois might be practicable for a competent and confident cyclist, given the relatively short distance, making that a possible option for travel to and from work. Nevertheless, it can reasonably be anticipated that the vast majority of trips to and from the site would be by private motor vehicle.
25. In the Framework, Policy TR3 includes that development which could generate a significant amount of movement, in the context of the area within which it would be situated, should be in locations that are, or can be made sustainable. That is, where the need to travel by car is limited and a genuine choice of transport modes is available. While the proposed use would be relatively modest by the standard of freight and logistics uses, it would generate a significant amount of movement compared to the former agricultural use of the site. The transport evidence indicates that can be accommodated within the rural road network, and the Council has not alleged otherwise. Nevertheless, there would be frequent and regular vehicle movements to and from the site, as that is operationally characteristic of a storage or distribution use.
26. Drawing on the TRICS database, the Ardent Highways Technical Note for this appeal includes evidence that B8 uses do not typically attract trips by cycle, public transport or on foot. However, that does not mean that the nature of the development makes travel by those means inherently impractical. While the use is operationally reliant on use of motor vehicles, including vans and lorries, employees could travel to and from work by other means, where those options exist. Furthermore, Policy E3 of the Framework requires that development proposals for freight and logistics uses have good access to transport networks appropriate to the type of development, including via sustainable transport modes where possible. Since the availability of sustainable transport modes is described in the Framework as being relevant to B8 uses, the lack of realistic alternative travel options weighs against the suitability of the location.
27. At the same time, Framework Policy E4 is supportive of conversion of existing buildings to support the sustainable growth of businesses in rural areas. Policy E4 also recognises that development to meet business needs in rural areas may need to be located outside settlements and in locations that are not well served by public transport. There is little specific evidence of how this proposal would support the growth of any existing rural business, since no specific occupier is detailed. Nor would it clearly support farm diversification, since the previous agricultural use appears to have ceased. Nevertheless, it would generate some employment and support economic activity in the rural area more generally, so it gains some support from Policy E4.
28. The buildings are suited to a B8 use, according to the Strettons report² included with the Planning Statement, which also details local demand for B8 uses, outstripping supply. The Strettons report is now a few years old, and the other economic evidence attached to the Planning Statement is even older. A new Local

² Strettons Ltd letter dated 26 May 2022

Plan has been adopted since then, and the evidence before me does not go on to consider the extent to which any unmet need for B8 uses is or is not now being addressed at a strategic level. Nevertheless, Policy E2 of the Framework requires that economic benefits derived from improvements in freight and logistics are given substantial weight. While the site may not be ideally located for the use, that is a further factor in favour of the development.

29. Taking those particular circumstances into consideration, I conclude that the proposed development would be acceptably located having regard to its accessibility by sustainable transport modes. It would conflict with Policy T1 of the Local Plan, since the location would not minimise the need to travel or promote opportunities for sustainable transport modes. There would also be some conflict with Policies TR3 and E3 of the Framework, for the same reason. However, that would be mitigated by the positive approach taken in Policies E2 and E4 of the Framework towards improvements to freight and logistics and rural business uses respectively. When considered against the most relevant national decision-making policies taken together, the location would be acceptable, albeit not ideal.

Other Considerations

30. The alterations to the buildings would broadly maintain their existing character. Parking would be accommodated on the existing hardstandings, without any apparent need to extend into the surrounding countryside. The proposed landscaping, including a new hedge at the rear, would help to contain the use and an existing security cabin would be removed. There may be some minor visual benefit from resurfacing of the access road, although the current surface is not untypical of a rural farm or business use. Overall, those proposed measures would provide some limited visual benefits, but largely only from the public rights of way some way to the north.
31. Some minor ecological enhancements are proposed, but the proposal would be exempt from the statutory requirement for biodiversity net gain, as the application was made before that regime was introduced.
32. Evidence has been provided of how environmental issues such as air quality, dust, noise, land contamination, drainage and ecological impacts could be addressed, using planning conditions where necessary. Those are, however, neutral considerations not weighing in favour of the development.

Planning Balance

33. In the context of the presumption in favour of sustainable development, Policy S5 of the Framework is applicable. Where development is proposed in the Green Belt, that directs the decision-maker initially to Framework Policies GB6, GB7 and GB8 as appropriate. However, in this case, for the reasons given above, the proposal would not be inappropriate development when assessed against Policy GB7. That being so, part 2 of Policy S5 is applicable. That states that, in applying Policy S5, the circumstances in which the benefits of approving development proposals are likely to be substantially outweighed by the adverse effects include, but are not restricted to, situations where the development proposal would fail to comply with one of the national decision-making policies which state that development proposals should be refused in specific circumstances.

34. In principle, development providing improvements in freight and logistics should be given substantial positive weight in accordance with Policy E2 of the Framework. However, in this case the site is less than ideally located, when the conflict with national decision-making Policies TR3 and E3 is also taken into account. It would also be of a relatively modest scale in the context of the freight and logistics sector, and the evidence cited regarding unmet demand for such uses is dated. Nevertheless, the economic benefits, including any support for the rural economy, are the most significant factor in favour of the proposal, along with the other, more limited benefits.
35. Having considered the contradictory evidence from both parties, I have concluded based on the evidence before me that there would be a conflict with Policy TR6 of the Framework. The proposal would be more specifically contrary to Policy TR6 part 4, which is amongst the national decision-making policies which state that development proposals should be refused in specific circumstances. In this case, those circumstances are the unacceptable impact on highway safety, in the absence of clear evidence that the required visibility can be properly secured.
36. Having regard to the conflict with Policy TR6, in my judgement the economic and other benefits of this particular proposal would be substantially outweighed by the adverse effect on highway safety. Consequently, the proposal does not benefit from the presumption in favour of sustainable development as articulated in Policies S3 and S5 of the Framework.

Other Matters

37. A variety of other concerns have been raised in representations, including the effect of commercial use on living conditions within neighbouring dwellings. The site is also within a Zone of Influence of the Epping Forest Special Area of Conservation, where mitigation would be required for likely significant effects on the qualifying features of this Habitats Site. However, those matters are not contested between the main parties, subject to use of suitable planning conditions. Since I am dismissing the appeal for the reasons given above, any other matters raised could not have a bearing on the outcome, so there is no need for me to consider them further.

Conclusion

38. The proposal conflicts with the development plan and the material considerations do not indicate that the appeal should be decided other than in accordance with it. Therefore, the appeal should be dismissed.

Jane Smith

INSPECTOR